

26STCP01080 26STCP01080

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Case Number: 26STCP01080 Hearing Date: August 7, 2026 Dept: L

Tentative Ruling

REAL PARTY IN INTEREST MARICI PROJECT LLC'S DEMURRER TO FIRST AMENDED PETITION FOR WRIT OF MANDATE

Judge Joel Lofton Department L

CASE: PUENTE HILLS COMMUNITY PRESERVATION ASSOCIATION Plaintiffs, vs CITY OF INDUSTRY Defendants, MARICI PROJECT LLC, Real Party in Interest.

CASE NO: 26STCP01080

Hearing Date: August 7, 2026

Hearing Time: 1:30 p.m.

MOVING PARTY: MARICI PROJECT LLC, Real Party in Interest.

RESPONDING PARTY(S): PUENTE HILLS COMMUNITY PRESERVATION ASSOCIATION

DEMURRER

Tentative Ruling: Real Party in Interest Marici Project LLC's demurrer is SUSTAINED in its entirety WITH LEAVE TO AMEND.

I. INTRODUCTION AND PROCEDURAL HISTORY

This is a CEQA action. The Project is a Marici Battery Energy Storage System (Project) which comprises of is a 400-megawatt battery energy storage facility consisting of lithium-ion batteries, inverters, transformers, switchgear, a collector substation, and associated equipment to interconnect with the Southern California Edison Walnut Substation. The Project site is located at approximately 16233, 16207, and 16253 Gale Avenue in the City of Industry, comprising approximately 9.2 acres. On February 12, 2026, the City Council of the City of Industry approved the Project, including Ordinance No. 841 amending the City's Municipal Code to allow battery energy storage system facilities as conditionally permitted uses in the Industrial zone, Conditional Use Permit No. 24-03, and other entitlements. The City also adopted a Mitigated Negative Declaration for the Project. Notice of the Planning Commission hearing on January 27, 2026, was published on January 7, 2026. Notice of the City Council hearing on February 12, 2026, was published on February 2, 2026.

Petitioner Puente Hills Community Preservation Association (PHCPA) filed its initiating petition (Petition) on March 16, 2026 against respondents the City of Industry (City) and City Council of the City of Industry (Council) and real party in interest Marici Project, LLC (Marici).

PHCPA filed its initial petition with several individual co-petitioners, who have since dismissed their claims.

PHCPA filed its operative First Amended Petition (FAP) on May 22, 2026, asserting claims captioned as follows:

- (1) Violation of CEQA;
- (2) Violation of State Planning and Zoning Laws, Abuse of Discretion, Ultra Vires; and
- (3) Violation of Procedural Due Process – Failure to Provide Adequate Public Notice.

On June 15, 2026, PHCPA filed a Notice of Errata correcting several clerical errors in the FAP, with no legally operative effect on the pleading.

In its FAP, PHCPA alleges various legal and procedural irregularities took place during the City and Council's approval of the Project and prays for a writ of mandate and declaratory and injunctive relief ordering compliance with relevant laws and regulations and enjoining work on the Project until compliance is achieved.

On June 15, 2026, Marici demurred to all causes of action in the Petition. For all causes of action, Marici contends PHCPA has failed to allege it exhausted its administrative remedies before filing suit. For the second and third causes of action, Marici also contends PHCPA fails to allege facts sufficient to state either of its claims. Marici also filed a Request for Judicial Notice of various materials in support of its arguments on demurrer.

On June 17, 2026, the City and Council filed a Joinder to Marici's demurrer.

On June 30, 2026, PHCPA separately filed an opposition to the demurrer and an objection to Marici's request for judicial notice.

On July 7, 2026, Marici filed separate replies in support of its demurrer and request for judicial notice.

II. LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleading. The court accepts as true all material facts properly pleaded, but does not consider contentions, deductions, or conclusions of fact or law. Cal Code Civ Proc § 472 The court gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context.

When a demurrer is sustained, the court must determine whether there is a reasonable possibility that the defect can be cured by amendment. The burden of proving such reasonable possibility rests on the plaintiff. A demurrer may be sustained on the ground that a pleading is uncertain, which includes ambiguous and unintelligible pleadings. Cal Code Civ Proc § 472a However, demurrers for uncertainty are disfavored and strictly construed because ambiguities can be clarified under modern discovery procedures.

III. REQUEST FOR JUDICIAL NOTICE

Marici requests judicial notice of the following materials:

(1-2) A City ordinance and Council resolution;

(3-5) Corporate records and Articles of Incorporation for PHCPA; and

(6-10) Various City ordinances and zoning and planning maps.

Requests Nos. 1-2 and 6-10 are granted.

Requests Nos. 3-5 are denied. The Court may not take notice of the truth of the documents' contents, and their existence is irrelevant for purposes of demurrer.

IV. MEETING AND CONFERENCE

The parties met and conferred by conversation on May 29, 2026, memorialized by email on June 5, 2026. (Oehlschlager Decl., ¶ 5 and Exh. A.) Marici satisfied its obligations under Code of Civil Procedure section 430.41.

V. DISCUSSION

A. Exhaustion of Administrative Remedies

"As a general rule, 'a party must exhaust administrative remedies before resorting to the courts. [Citations.] Under this rule, an administrative remedy is exhausted only upon 'termination of all available, nonduplicative administrative review procedures.' " [Citation.]" (Hill RHF Housing Partners, L.P. v. City of Los Angeles (2021) 12 Cal.5th 458, 477.)

"[E]xhaustion of administrative remedies 'is not a matter of judicial discretion, but is a fundamental rule of procedure laid down by courts of last resort, followed under the doctrine of stare decisis, and binding upon all courts. ... [E]xhaustion of the administrative remedy is a jurisdictional prerequisite to resort to the courts.' [Citation.]" (Sierra Club v. San Joaquin Local

Agency Formation Com. (1999) 21 Cal.4th 489, 496.)

"The 'failure to exhaust administrative remedies is a proper basis for demurrer.' [Citation.] A complaint is vulnerable to demurrer on administrative exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting." (Parthemore v. Col (2013) 221 Cal.App.4th 1372, 1379.)

This exhaustion requirement is a procedural prerequisite codified in Cal Pub Resources Code § 21177, which dictates that an action or proceeding shall not be brought pursuant to the judicial review provisions of CEQA (specifically Cal Pub Resources Code § 21167) unless the alleged grounds for CEQA noncompliance were first presented to the public agency California Natural Gas Vehicle Coalition v. State Air Resources Bd., 105 Cal. App. 5th 304, Cal Pub Resources Code § 21177.

PHCPA does not plead facts in its FAP sufficient to demonstrate it exhausted its administrative remedies or is excused from doing so. Marici contends, and PHCPA functionally admits, that the only allegation related to exhaustion appears in paragraph 21 of the FAP, stating the conclusion that "Petitioner and its members ... have exhausted any and all administrative remedies to the extent required by law." (FAP, ¶ 21; Dem., 12:21-26; Opp., 4:20-23.) This is insufficient.

California's "fact pleading" rules require a pleading to apprise an adversary of the factual basis of the plaintiff's claim, providing information detailed enough for the adversary to prepare a defense. (See Semole v. Sansoucie (1972) 28 Cal.App.3d 714, 719-721.) PHCPA does not need to plead evidentiary facts to survive demurrer, but it must provide facts sufficient for Respondents to understand its theory of exhaustion well enough to adequately respond.

In this sense, PHCPA's recitation of possible theories of exhaustion in its opposition proves Marici's argument. PHCPA must plead facts to show which one of its theories it contends should apply, and on what basis.

PHCPA does not cite authority for the proposition that it must have access to an administrative record before it is subject to ordinary pleading requirements. (See Opp., 7:5-7.) The suggestion is procedurally impossible; a petition must be filed before a record is prepared for litigation. In any case, PHCPA may plead its facts upon information and belief if it believes the facts will be reflected in the administrative record.

The demurrer is sustained with leave to amend for PHCPA's failure to plead it exhausted its administrative remedies. Any amended petition must allege specific facts demonstrating compliance with the exhaustion requirement, including who objected, when, how, and what issues were raised, or must plead facts establishing a recognized exception to the requirement.

B. Second and Third Cause of Action (Failure to State a Claim)

The second and third causes of action also fail either for failure to state a claim or for uncertainty.

The second cause of action depends on various alleged violations of statute or ordinance. But it fails to articulate what facts support what precise violations. A statutory claim must be pled with particularity. (See Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Susman v. City of Los Angeles (1969) 269 Cal.App.2d 803, 809.) The second cause of action refers to "applicable zoning regulations, [etc.];" to "legally required findings" not made; to "several General Plan policies"; and failure to make "a legally valid finding". (FAP, ¶¶ 72-84.) But to the extent it specifically identifies statutes violated, it is only by "See" cite to four sections of the Government Code. This is insufficient to place Respondents on notice of the particular basis for PHCPA's claim. Also, PHCPA's incorporation of all the facts alleged elsewhere in the FAP is insufficient to attach any particular facts to any particular alleged violation.

Similarly, the third cause action relies on failure to provide adequate public notice, but it does not specify what notice requirements were violated. Allegations that "residents ... living near the Project site ... did not receive actual notice" and "the

City's notices were not translated into the language the majority of the community speak" (FAP, ¶¶ 91-92) are insufficient unless PHCPA identifies what law, ordinance, or regulation governed the geographical scope of notice or the languages into which notice must be translated.

C. Leave to Amend

The Court grants leave to amend. This is the first demurrer to the FAP. Petitioners should be afforded an opportunity to amend to address the deficiencies identified in this ruling. In this iteration, the FAP is deficient largely for lack of specificity. It is not self-defeating on its face. Respondents' judicially noticed materials do not defeat any cause of action in the FAP (perhaps because the allegations are too uncertain to be clearly defeated).

VI. CONCLUSION AND ORDER

Real Party in Interest Marici Project LLC's demurrer is SUSTAINED in its entirety WITH LEAVE TO AMEND.

Petitioner is ordered to file a second amended petition within 30 days.

Real party to give notice.

Petitioner shall file and serve any amended complaint within 30 days of service of notice of this order. Cal. Rules of Court, rule 3.1320. If Petitioner fails to file an amended complaint within the time allowed, Real Party in Interest Marici Project LLC may seek dismissal of the sustained causes of action by ex parte application. Cal. Rules of Court, rule 3.1320

IT IS SO ORDERED.

Dated: August 7, 2026 _____

Joel L. Lofton

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at Shaunder A. Mitchell, '' by no later than 10:00 a.m. the day of the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.